Submission to the Joint Standing Committee on Electoral Matters Inquiry into the 2025 Federal Election

From: [redacted], [redacted] **Indi**

Introduction

I welcome the opportunity to make a submission to this inquiry.

Election conduct

Continuing the traditions established by *Voices for Indi* in 2013, each of my three campaigns have been values driven and deliberately structured to uphold the highest standard of conduct – by myself as a candidate and by all volunteers. In the 2025 election, more than 900 volunteers signed a values statement that included an agreement on behaviour standards they would commit to during the campaign and undertook training before participating in campaign activities.

By contrast, some opposing campaigns sought to invoke division and negativity, leaving volunteers and voters feeling uncomfortable and at times reluctant to participate. The '*Had Enough* [redacted]' campaign, run by a candidate with ties to the anti-vaccine movement, deployed 'anti-[redacted]' merchandising and oversized billboards at polling booths and a consistent stream of misinformation, conspiracy theories and anti-establishment rhetoric, including a staged drive by 'protest' during which the AFP advised me to remain close to my electorate office and volunteer hub for the safety of staff and volunteers because of an uncertainty about an escalation of aggression. In another instance, Vic Pol was called to attend a polling booth in a small town due to aggressive behaviour from the same candidate and his associates.

I personally witnessed, in addition to the countless accounts from volunteers, a polling booth strategy from some opposing candidates to target voters and walk alongside them all the way along the approach to the polling booth deliberately putting their body between the voter and volunteers from other campaigns in an attempt to prevent the voter having access to a range of how to vote cards.

Misinformation and disinformation

The spread of misinformation and disinformation is an ongoing challenge in public life, particularly in election campaigns, where content ranges from the unpleasant and disrespectful, to the outright vulgar. My communications team reported a marked increase

in hostility through social media trolling during the campaign. My staff spent hours each week moderating hundreds of confronting comments, some of which included personal threats and sexually explicit material. Much of this came from anonymous 'locked' profiles which made reporting to authorities difficult.

Examples of this content included misinformation on known conspiracy theories like vaccinations and 5G; misinformation about federal funding to the electorate; racist and discriminatory remarks at candidate forums; volunteer reports of sexually explicit graffiti damage to my corflutes; unauthorised flyers distributed with disinformation ; and an animated film shared by [redacted] depicting the people of Indi as rats, and portrayed me leading people into a river to drown.

There were other instances where a video was posted on social media of my volunteers getting in their cars, photos and names of my volunteers shared in community groups, and in one instance, a video posted of a phone call to my office and the unauthorised recording of the conversation with a young member of my staff.

> "When volunteering for [redacted], the recent election campaign, I experienced an incident with an opposition candidate and his volunteers. As I was leaving a café wearing my campaign t-shirt, I noticed a large corflute (belonging to the opposition campaign) had been placed on the bonnet on the car parked next to mine, I then heard heckling and jeering from the group, which was directed at me. As I had never experienced anything like this before, I felt quite nervous and confronted, and continued feeling that way for quite some time after the incident.
>
> The next day I was informed that the entire incident had been filmed by the candidate and posted on his social media page. I felt an overwhelming sense of violation and absolute disrespect by people who do not even know me or anything about me, apart from the fact that I was volunteering for someone they obviously opposed." [redacted] from Benalla

Such violations of respectful behaviour, endorsed by candidates and in combination, constitute intimidation and harassment, threaten our social cohesion and the willingness of people to engage in the democratic process.

A post-election survey of my volunteers revealed unpleasant encounters with aggressive candidates and volunteers from other campaigns, with 33% of survey respondents reporting negative experiences with other candidates or their volunteers. Some volunteers – particularly older women – felt intimidated by the hyper-masculine behaviour of certain

candidates, particularly when they were together on prepoll or polling booths. To counter this, my campaign made a deliberate effort to ensure at least one male volunteer was present at Wodonga pre-poll, a first in my time as a candidate.

> "A bloke handing out How to Vote for [another candidate] abused my wife who was handing out How to Vote for Helen" *Volunteer 1*

> "The only Negative experience I had that affected me was when a [redacted] party volunteer encouraged a voter to become aggressive." *Volunteer 2*

> "I became much more aware of the constant barrage of negativity and lack of integrity from other Indi candidates and their supporters. It is difficult to see friends in our small local community behaving in an unusually unbecoming way. It is a shame that the major parties encourage this type of support." *Volunteer 3*

> "aggressive [redacted] volunteers on pre poll. incredibly intimidating towards women." *Volunteer 4*

The importance of communication between AEC officers and scrutineers

Overall, my volunteers reported positive and respectful interactions with AEC officers across polling booths, with both groups recognising each other's role and boundaries in safeguarding the democratic process.

However, a small number of incidents highlighted the need for improved communication and perhaps improved training for AEC officers. At one polling booth on election night, AEC officials encountered an error reconciling the first preference count. They moved away from scrutineers to resolve the issue but did not announce or update our scrutineers once it was corrected, leaving them unaware that the TCP count had already commenced.

> "After they had identified that their numbers were not reconciled after the first preference count, we left them to sort out that issue which was a matter of wrangling the numbers. I was expecting them to come to us when they had identified the error and explain the discrepancy and its resolution, then tell us the confirmed first preference count. They would then move onto the TCP count... As it turned out, I think they betrayed our trust by moving away and not bringing us back into the process." [redacted] *scrutineer*

In another case, an AEC officer reviewing informal votes appeared irritated by scrutineers observing the process, despite this being within their legal rights.

> "We were looking at the informal votes and what he [AEC official] was doing with those, and he got a bit annoyed by that. He told us that it was his final decision and we didn't get a say. Maybe that's true, but as I understood it we were also able to watch and report anything that is not above board behaviour, regardless of where the count is at." – [redacted] from Wangaratta

These incidents underline the importance of clear, consistent communication between AEC officials and scrutineers, particularly during high-pressure moments late on election night in addition to the initial briefing and handbook material.

Proposed Electoral Reforms

The Special Minister of State has added additional terms to this inquiry, including to consider the composition of the Parliament as a whole, the number of elected representatives relative to the growth in population and the electorate, and the potential for fixed terms.

- Fixed terms of four years would provide certainty for voters and campaign teams, removing the advantage of government to 'call the date' on their own terms. I support fixed four-year terms.
- Any consideration to increase the number of elected representatives, and consequential changes to electoral boundaries, must be accompanied by a rigorous assessment of the financial consequences of recent electoral public funding reforms. Current estimates suggest an increase in public funding will cost taxpayers $41 million per election. If reports of an expanded parliament in the vicinity of 48 new members in the House of Representatives and 24 senators eventuate and flow to the major parties - as the inequities built into the electoral reforms were designed to do - the new administrative funding payment, already set to deliver more than $12 million to the major parties, could deliver an additional $9.7 million each parliamentary term.

Electoral reforms legislated in 47th Parliament

The electoral reforms pushed through Parliament in February 2025 by the government were, in effect, a gift from the major parties to themselves. It was deeply disappointing that the government refused to refer the Electoral Legislation Amendment (Electoral Reform) Bill 2024 to the Joint Select Committee on Electoral Matters. Such a referral would have ensured the full scrutiny and transparency that such significant and consequential

changes to political donations, electoral funding and spending caps - changes that clearly advantage the major parties over independents – should have been afforded.

Recommendations

Australia's democracy is strongest when elections are conducted fairly, transparently and in a spirit of civility and respect. To achieve this, I make the following recommendations to this inquiry:

1. Consider additional measures including truth in political advertising laws to counter misinformation and disinformation in campaigns, including protections against vilification and misleading conduct;
2. Strengthen protocols for communication between AEC officers and scrutineers to ensure transparency and accountability at every stage of the count;
3. Require a detailed financial impact assessment of any increase in the number of parliamentarians, specifically as relates to recent reforms that disproportionately benefit major parties.

By implementing these measures, the Parliament can reinforce public trust, level the playing field for all candidates, and safeguard the democratic process for the future.

[redacted]